

M/s Shree Raman Plastics v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 19 December 2022 · WRIT - C No. 59982 of 2009 · **Writ dismissed as not pressed.**

HEADNOTE

A consumer challenged a demand for additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005. In 2009 a Division Bench listed the writ with similar matters and, without prejudice and following an interim in Vehlina Steels, restrained the licensee from demanding additional security until further orders. In 2022 the petitioner did not press the petition, which was dismissed as not pressed. The legality of the Para 4.20 demand was not decided.

FACTUAL SUMMARY

M/s Shree Raman Plastics, a consumer of Paschimanchal Vidyut Vitran Nigam Ltd., sought quashing of a demand notice dated 30 August 2009. Counsel submitted that additional security was being asked under Para 4.20 of the U.P. Electricity Supply Code, 2005, and relied on an interim order of 23 June 2009 in a similar writ by M/s Vehlina Steels & Alloys Pvt. Ltd. The licensee's counsel accepted that identical questions were pending in several 2009 matters. After years of pendency the petitioner in December 2022 asked that the writ be dismissed as not pressed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

A writ challenging additional security demanded under Para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed as not pressed. An earlier Division Bench had, without prejudice to the parties' rights, listed the matter with similar 2009 cases and restrained the licensee from demanding additional security until further orders, following the interim in Vehlina Steels. ¶ 1,3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ADDITIONAL SECURITY DEMANDED UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS LAWFUL

The 2009 interim restrained additional security without prejudice; the writ was later dismissed as not pressed without deciding the demand notice. ¶ 1,3

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Vehlina Steels & Alloys Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> Writ Petition No. 30582 of 2009, order dated 23 June 2009 (All.)			1	Referred